

from the settlement administrator as to the total number of claims received during the 90-day claim period.

Motion for Attorneys' Fees, Costs, and Service Award

If oral argument is requested, it will be heard in Department 42 by the **Honorable Trisha J. Hirashima**.

Plaintiffs are advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

The motion for attorneys' fees, costs, and service award is continued to be heard together with the motion for final approval on **June 23, 2026 at 8:30 a.m. in Department 42**. No further briefing is permitted.

8. S-CV-0051883 Victoria Figone v. Moana Beach Property Owners Assn.

Motion for Summary Adjudication

Plaintiff Victoria Figone ("Plaintiff") moves for summary adjudication on her sixth cause of action for declaratory relief (violation of Civil Code section 4765) against the Moana Beach Property Owners Association, Inc. ("Defendant" or "Association"), seeking a determination that the Association's denial of her accessory dwelling unit ("ADU") application is invalid as a matter of law. Plaintiff contends that, at the time the Association reviewed and denied her ADU application, it had not adopted or distributed written architectural review procedures as required by Civil Code section 4765 and its own governing documents. Plaintiff argues that this lack of statutory compliance deprived the Association of authority to act, such that the denial of her application must be declared void without regard to the reasonableness of the decision. The Defendants oppose the motion.

Preliminary Issues—Requests for Judicial Notice and Evidentiary Rulings

The court rules as follows on Plaintiff's Requests for Judicial Notice:

- (1) The request is granted as to Exhibits 23 (Complaint) and 24 (Answer) with respect to their existence and filing, but not as to the truth of the matters asserted therein. (Evid. Code § 452(d).)
- (2) The request is granted as to Exhibit 25 (CC&Rs) as a recorded governing document; the court takes notice of the document and its legal effect, but not of any disputed factual interpretations. (Evid. Code § 452(c) and (h).)
- (3) The request is granted as to Exhibits 26 and 29 (Tahoe Regional Planning Agency ("TRPA") Permits) as official acts of governmental agency; the court takes notice of the existence and issuance of the permits, but not of any factual findings or conclusions contained therein. (Evid. Code § 452(c).)
- (4) The request is granted in part as to Exhibits 27 and 28 (TRPA Site Plans and Architectural Sheets); the court takes notice that these documents were submitted

to and/ or approved by TRPA as part of the permitting process. The court does not take notice of the truth, accuracy, or technical content of the plans, including any measurements, impacts, or interpretations. To the extent that is requested, it is denied.

Plaintiff objects to defendants' Additional Material Facts, as opposed to objecting to the evidence supporting such facts. All objections are overruled as being in improper form. All objections are also overruled in substance.

Discussion

A motion for summary adjudication shall be granted where the moving party establishes there is no triable issue of material fact and it is entitled to judgment as a matter of law. (Code Civ. Proc. ("CCP") § 437c, subd. (c); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850-851.) The court must view the evidence in the light most favorable to the non-moving party and resolve all doubts in favor of that party. (*Michaels v. Greenberg Taurig, LLP* (2021) 62 Cal.App.5th 512)

Plaintiff's sixth cause of action alleges that an actual controversy has arisen between the parties in that the Association has attempted to enforce the CC&Rs in an inconsistent, disparate, unreasonable, bad faith, and arbitrary and capricious manner by rejecting and/or denying Figone's ADU submittals, in violation of Civil Code section 4765. Plaintiff seeks a declaratory judgment determining the rights, duties and obligations of the parties under Civil Code section 4765 and further finding that the Association's failure to comply with Civil Code section 4765 renders the architectural standards unenforceable and void as applied to plaintiff's ADU submittals.

Civil Code section 4765, subdivision (c) states:

An association shall annually provide its members with notice of any requirement for association approval of physical changes to property. The notice shall describe the types of changes that require association approval and shall include a copy of the procedure used to review and approve or disapprove a proposed change.

Plaintiff asserts the Association failed to adopt and distribute, on an annual basis, written architectural review procedures, thus violating Civil Code section 4765, and rendering its denial of plaintiff's ADU application invalid as a matter of law. Plaintiff relies on *Ruffier v. Volcano Hills Road Maintenance Assn.* (2025) 117 Cal.App.5th 899. In *Ruffier*, the association did not dispute its failure to comply with reporting requirements of Civil Code section 5300.

To the extent plaintiff satisfies her burden as to the Association's failure to comply with Civil Code section 4765, the Association establishes a triable issue of material fact regarding the existence, nature and sufficiency of its procedures. The Association submits evidence of the existence of an operative procedure including plan submissions, committee review, neighbor input, requests for story poles, and appeals to the Board.

(UMF and DMF 6-9.) The application of consistent standards in evaluating applications, and utilization of a fair, reasonable and expeditious process present issues of fact. Plaintiff fails to establish entitlement to a declaratory judgment finding the Association was deprived of the authority to act based asserted procedural deficiencies.

Plaintiff's motion for summary adjudication is denied.

Motion to Continue Trial

The parties are required to appear in court on **April 28, 2026 at 8:30 a.m. in Department 42.**

9. S-CV-0052243 Alpine View Estates v. Tonopalo Private Residence Club

Defendant is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Motion for Summary Judgment or, in the Alternative, Summary Adjudication

Defendant moves for summary judgment or, in the alternative, summary adjudication of the second amended complaint's only claim for declaratory relief, contending the undisputed material facts show defendant is entitled to judgment. Plaintiff opposes the motion.

Evidentiary Rulings

Defendant's request for judicial notice filed with its moving papers is granted.

Defendant's objections to the Taylor declaration are overruled in their entirety.

Defendant's request for judicial notice filed with its reply is granted. However, as to Exhibits I and J, the court takes judicial notice that these documents are filed court records; the court does not take judicial notice of the truth of the information therein.

Ruling on the Motion

A party is entitled to bring a motion for summary judgment where there are no triable issues of fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) The defendant bears the initial burden of establishing that one or more elements of the cause of action cannot be established or that there is a complete defense to the cause of action. (*Id.* subd. (p)(2).) Only when this initial burden is met does the burden shift to the opposing party to show a triable issue of material fact. (*Ibid.*) A party may move for summary adjudication as to one or more causes of action if the party contends the cause of action has no merit. (*Id.* subd. (f)(1).) A party may move for summary adjudication as an alternative to summary judgment and shall proceed in all procedural respects as a motion for summary judgment. (*Id.* subd. (f)(2).) In reviewing a